Law & Motion

2. 9:00 AM CASE NUMBER: C22-01352
CASE NAME: ETHAN LYNCH VS. JOHN MUIR HEALTH, A CORPORATION
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: CALAFI, LEO AFSHIN, MD
TENTATIVE RULING:*
Withdrawn at request of moving party.

3. 9:00 AM CASE NUMBER: C23-00570
CASE NAME: GENOVEVA HERRERA HERNANDEZ VS. LAS MONTANAS MARKET, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURT**
FILED BY:
TENTATIVE RULING:*

Plaintiff Geneveva Hernandez moves for preliminary approval of her class action and PAGA settlement with defendant Los Montanas Market, Inc.

A. **Background and Settlement Terms**

The original complaint was filed by plaintiff on March 14, 2023 , 2023, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. The operative complaint, adding PAGA allegations, was filed on July 20, 2023.

The settlement would create a gross settlement fund of $450,000. The class representative payment to plaintiff would be up to $10,000. Attorney's fees would be $150,000 (one-third of the settlement). Litigation costs would not exceed $20,000. The settlement administrator's costs would not exceed $15,000. PAGA penalties would be $10,000. Because the LWDA notices in question were filed before June 19, 2024, the employees would receive a 25% share of PAGA penalties, or $2,500. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about $240,500. The fund is non-reversionary. Based on the estimated class size of 466, the average net payment for each class member is approximately $531. (Since notice was provided, the class size has been set at 489 members, and the average payment is now estimated at about $520.)

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.